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# Indigenous Law Institute

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## **Toward the Global Liberation of All Nations and Peoples**

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# **Toward the Global Liberation of All Nations and Peoples**

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Article 1 of the International Covenant on Civil and Political Rights (ICCPR) reads: “All peoples have the right of self-determination. By virtue of that right they freely determine their political status and freely pursue their economic, social and cultural development.” This exact language is also found in article 1 of the International Covenant on Economic, Social and Cultural Rights (ICESCR).

The two abovementioned UN human rights Covenants were intended to serve as a “more elaborate formulation of human rights standards” than the “preliminary step” of the Universal Declaration of Human Rights that was adopted by the UN General Assembly on December 10, 1948. In other words, the above language regarding all peoples having the right of self-determination found in the Covenants of December 16, 1966, was part of the General Assembly’s effort to clarify the overall framework of human rights that it began to express in the Universal Declaration of Human Rights. (See, Ian Brownlie, *Basic Documents in International Law*, 1983, p. 257)

In the preamble of the Universal Declaration of Human Rights, we find that the General Assembly declared the human rights enumerated in that document to be “a common standard of achievement for all peoples and all nations.” The General Assembly further declared the need for the “universal and effective recognition,” of the rights enumerated therein, “both among the peoples of the Member States themselves and among the peoples of the territories under their jurisdiction.” In short, the ICCPR and ICESCR clarify that self-determination is an essential part of what the UN General Assembly has declared to be “a common standard of achievement for all peoples and all nations,” including the peoples considered to be “under the jurisdiction of” Member States.

## **ARTICLE 3 OF THE UN DRAFT DECLARATION ON THE RIGHTS OF INDIGENOUS PEOPLES**

Article 3 of the UN Draft Declaration on the Rights of Indigenous Peoples was lifted directly from Article 1 of both the ICCPR and the ICESCR. As a result, Article 3 reads: “Indigenous peoples have the right of self-determination. By virtue of that right they freely determine their political status, and freely choose their economic, social and cultural development.” The drafters of Article 3, intended it to mean that all peoples, including Indigenous peoples, have the right of self-determination...” At present, state government delegations to the Inter-Sessional Working Group on the Rights of Indigenous Peoples are attempting to give Article 3 the opposite meaning than was intended by its drafters: i.e., “all peoples, except Indigenous peoples, have the right of self-determination.”

However, if Indigenous nations and peoples fall within the category “all peoples and all nations,” (as found in the Universal Declaration of Human Rights) and/or within the category “peoples under their [Member States’] jurisdiction,” then, according to the ICCPR and the ICESCR, as peoples they already are considered to have the right of self-determination.

States opposing the principle that Indigenous nations and peoples have the right of self-determination have two main options open to them. One, attempt to entirely remove Indigenous nations and peoples from the category “peoples” as found in the United Nations Charter and the International Human Rights Covenants. One way for them to achieve this objective is by placing Indigenous nations and peoples into the category “individuals under the jurisdiction of democratic Member States.”

The second option open to State opponents of Indigenous peoples’ self-determination is to support some type of nominal Indigenous group or collective rights under the dominion and jurisdiction of states. This is the U.S. model of federal Indian law, and “domestic dependent nations.” Under this option the political status of Indigenous nations and peoples is predetermined for them by states, but they are then “free to choose their economic, social and cultural development,” subject, however, to the ultimate dominion of the state within which the Indigenous peoples find themselves situated. If adopted, this option will result in the universal application of a world-wide “democratic colonial framework.” In either of the above two scenarios, the present colonial status quo becomes written into an international instrument.

## **DEFINITIONS**

Since the Universal Declaration of Human Rights refers to “the peoples of the territories under their [Member States’] jurisdiction,” we must ask ourselves, “Is this a reference to what are now commonly referred to as Indigenous peoples.”

The word “jurisdiction” is derived from the Latin *jus*, or *juris*, meaning law, and *dictio*, from *dico*, meaning “to pronounce.” Thus, jurisdiction literally means, “to pronounce law.” However, the more general definition relevant to this discussion is, “the extent of the authority of a government,” or “the district or limit within which power may be exercised.” To speak of “the peoples of the territories under the jurisdiction of Member States, means” under the authority of Member States.”

The word “authority” brings us to, “power or right to command or act, dominion, and control.” Based on this, the above phrase may be understood as meaning “peoples of the territories under the dominion of Member States.” What is dominion? The term dominion is derived from the Sanskrit term *damayati* and the Latin *domanus*, meaning “he who subdues.” It is also traced to the Latin word “*domo*,” meaning, “to subjugate, to subdue, to place into subservience, to tame, to domesticate, to cultivate, and to till.” The Latin word for “to cultivate,” is *colere*, “to colonize.”

According to Admiral Samuel E. Morison, in *The Oxford History of the American People*, colonization is “a form of conquest in which a nation takes over a distant territory, thrusts in its own people and controls or eliminates the native population.” He goes on to describe what he calls “modern colonization,” or “that amazing expansion of trade and settlement” by Europeans “which resulted in world dominion.” It is this process of modern colonization, he said, which “produced lasting results in America, Australia, New Zealand, and South Africa; even in those countries of Asia and Africa which have won their independence since World War II.” (p. 34)

In short, colonization is a process of subjugation, domination, foreign control, and unabated resource exploitation. This matches the etymological roots of dominion as “one who subdues.” Thus, “the history of colonization is not simply that of the migrations of men across the world. It is also that of war and of exploitation of races and of nations one by the other.” (Henry C. Morris, *The History of Colonization, From the Earliest Times to the Present Day*, Vol. 1, 1904, p. 10)

In the case of the United States, Canada (and the rest of the Americas), Australia, New Zealand, and many other parts of the world, the phrase “peoples of the territories under the jurisdiction of Member States” means, “peoples of the territories historically colonized by Member States (or, by the predecessors of Member States).

## **THE “INDIGENOUS PROBLEM” IS A COLONIAL PROBLEM**

According to Fact Sheet No. 9, “The Rights of Indigenous Peoples,” issued by the United Nations Office of the High Commissioner for Human Rights, “Indigenous peoples or aboriginal peoples are so-called because they were living on their lands before settlers came from elsewhere.” The document further says that “new arrivals” later became dominant “through conquest, occupation, settlement or other means.” (This language is found on the first page of Fact Sheet No. 9.)

Thus, according to the UN High Commissioner for Human Rights, the term “indigenous” is properly applied to peoples that are subjected to dominance, or, stated somewhat differently, it is properly applied to peoples over whom dominance has been established. Interestingly, this is also the definition of “colonial peoples,” according to Anthropologist Laura M. Thompson, in her 1943 essay, “Steps Toward Colonial Freedom: Some Long-Range Planning Principles Toward a New World Order.” It is curious that the dominance established by the “new arrivals” over Indigenous peoples “through conquest, occupation, settlement or other means” is not characterized by the UN Office of the High Commissioner for Human Rights as being in violation of “the rights of Indigenous peoples.”

In the forward to another of Thompson’s books, John Collier, who was the United States Commissioner of Indian Affairs from 1933-945, identified the link between U.S.-Indian policy and colonialism. He remarked: “When in 1941, Harold L. Ickes, then Secretary of the Interior, and I, then Indian Commissioner, and Willard W. Beatty, then as now Director of Indian Education, solicited the research of which this book is one of the products, we were viewing the government’s Indian Service as just one of the many enterprises of colonial administration, trusteeship, service to dependencies and minorities, in the world as a whole.” (Laura M. Thompson, *Culture In Crisis, A Study of the Hopi Indians*, 1950, p.12-13).

“Colonial peoples” are not the colonizers. Rather, they are the peoples subjected to the colonizers’ domination, jurisdiction, or rule. Colonial peoples are those nations and peoples who, as a result of having been historically subjected to the violent process of colonization by settler populations, are held in a perpetual state of colonial bondage. Once they have been placed under colonial domination, the colonizers then deny them the right to once again be restored to their pre-colonial free and independent way of life. It is because Indigenous nations and peoples are attempting use the UN Draft Declaration on the Rights of Indigenous Peoples to liberate themselves from the legacy of colonial domination and oppression that many States, particularly the United States, are opposed to Article 3 and other specific provisions of that document.

The Universal Declaration of Human Rights, by specifically referring to “peoples of the territories under their [Member States’] jurisdiction,” is referring to peoples living under colonial rule. This describes Indigenous nations and peoples. According to the international human rights framework, all nations and peoples of the world living under colonial rule have the right of self-determination expressed in the International Human Rights Covenants. They also have the right to use the principle of self-determination to free themselves of colonial domination. States, on the other hand, have no right to block or impede the liberation of Indigenous nations and peoples without violating international human rights standards.

### **ARTICLE 3 AND THE FEARS OF “SETTLER” STATES**

In its opening General Statement to the 4th UN Inter-Sessional Working Group, the United States expressed concern over Article 3 of the Draft Declaration on the Rights of Indigenous Peoples. Some, said the US, interpret self-determination to mean the right to separate or secede from the rest of society. Let us address both of these concerns.

### **SEPARATION**

Based on a conversation with an official from the US Department of State, the mention of separation is actually a fear that some Indigenous peoples will interpret Article 3 to mean that Indigenous nations and peoples have a right to independence.

Independence means, “the state or quality of being independent,” while independent means, “not influenced or controlled by others.” By saying that it does not want Indigenous nations and peoples to be independent, the US is saying that it wants them to remain dependent. As applied to originally free and independent peoples who have been subjected to colonization, and forced to live under colonial administration such as Indian Commissioner John Collier identified, the term “dependence” means “subordination or subjection to colonial rule.” Independence means free; dependence means unfree, subjugated, or held in colonial bondage.

If it is unacceptable for all peoples and all nations of the world to become free and independent of colonial domination, why have so many peoples been able to do exactly that since the United Nations was established in 1945? This question becomes even more poignant when we consider that American Indian nations of the Western Hemisphere, the Kanaka Maoli nation of Hawaii, and so many other nations and peoples forced to live under the dark cloud of colonialism, lived entirely free and independent before the empires of Christendom established their colonial domination on the homelands and territories of Indigenous nations and peoples.

When the thirteen British colonies along the North American Atlantic seaboard made their declaration in the name, and by the authority of the people of the colonies, it was—“That these united colonies are, and of right ought to be, free and independent states.” They did not have any long established precedent such as Indigenous nations and peoples do of an original free and independent existence. Yet despite this fact, the United States considers it to have been highly moral, and, in fact, one of the high points of human history, for the colonial leaders to have issued the Declaration of Independence from Great Britain.

The Declaration of Independence marked the beginning of independence for the thirteen colonies as free and independent states; it was a condition they did not previously have. On the other hand, our efforts as Indigenous nations and peoples to free ourselves of colonial domination is an effort to RESTORE OURSELVES to the original free and independent existence experienced by our ancestors for countless generations, even thousands of years, based on our spirituality, our knowledge of the natural laws, and the Original Instructions given to us by the Creator. This is our moral high ground.

## SECESSION

When the thirteen British colonies of the North American Atlantic coast declared themselves to be free and independent states, and joined themselves into a common union, they acceded (meaning, consented) to do so. In other words, they freely and willingly agreed to enter into such an association. A variation of the word accede is accession, which means “consent, agreement, or approval.” The word secession is the opposite of accession. To secede means, “to withdraw formally from an alliance, federation, or association.” And all three of these political relationships involve the prior act of peoples acceding or consenting to those relationships.

The relationship between a dominating empire, state, or colonizing people, and the peoples colonized, is not rooted in accession, consent, or free agreement. It is rooted in oppression. Therefore, it is impossible for nations and peoples forcibly held under colonial bondage to secede from such an abusive political relationship. The false issue of secession is a non sequitur (it does not follow), and, thus, a non-issue designed to be inflammatory and alarmist.

## THE AMERICAN EMPIRE AND INDIGENOUS NATIONS AND PEOPLES

George Washington once remarked that by winning the Revolutionary War, the thirteen states had “laid the foundation of a great empire.” “It is only in our united character, as an empire, that our independence is acknowledged, that our power can be regarded, or our credit supported among foreign nations.” Thomas Jefferson, who became Washington’s Secretary of State, and the third President of the United States, asked Washington in 1784 whether it was “practicable to keep our empire separated” from the rest of the world. (Richard Van Alstyne, *Genesis of American Nationalism*, p.3) Chief Justice Marshall, in the U.S. Supreme Court ruling, *Loughborough v. Blake* (1820), referred to the United States as “the American empire.” And, in *Downes v. Bidwell* (1900), the Supreme Court said with regard to the US’s imperial expansion, “a false step at this time might prove fatal to what Chief Justice Marshall called the American Empire.”

As soon as the thirteen British colonies declared and achieved their own free and independent political status, the newly created federal empire of states conspired to rob the Original Nations and Peoples of the Americas of our lands. They worked hard to forcibly deprive our ancestors of their own free and independent existence and way of life, and to force our nations and peoples under U.S. colonial rule. According to historian Richard Van Alstyne, the frame of reference of the American colonizers was “the Roman Empire in the Age of Augustus.” Indeed, Van Alstyne notes, “with the coming of the Revolution and with the ambition to weld the Thirteen Colonies into a national, sovereign state, the substitution of the phrase “American Empire,” for British came easily and naturally.” (Richard Van Alstyne, *The American Empire, Its Historical Pattern and Evolution*, 1960, p. 3) Now, in 1998, those who represent the American empire are attempting to maintain the system of colonization built by their ancestors and predecessors.

And upon what foundational principle has that edifice been built? According to Temple Bodley, “And what of the right of the Indians to the lands which had been immemorially theirs? The answer is that they were regarded by Christian nations as having no rights except such as the dominant white nation claiming their country chose to concede to them. Under the rule generally recognized by the great powers of Europe, uncivilized aborigines, such as the American Indians, became subjects of that Christian nation which first discovered and claimed their country; their lands became the property of that civilized nation. It was a hard rule for the Indians, but it was made by the lions for the lambs.” (Our First Great West, In *Revolutionary War, Diplomacy and Politics*, 1938, p. 4)

To this day, the American empire’s federal Indian law and policy remains premised upon the Doctrine of Christian discovery and dominion, or upon the claim of an ultimate Christian dominion over “Indians, who were heathens.” This premise is found in the 1823 US Supreme Court ruling *Johnson & Graham’s Lessee v. McIntosh* (21 U.S., 8 Wheat., 543). This ancient principle of Christendom has been interwoven into the laws and Supreme Court rulings of the United States, and now serves as the principal foundation of the colonial system under which the U.S. holds Indian nations and peoples. It is also used by other English Common law countries such as Canada, Australia, and New Zealand against Indigenous nations and peoples. The U.S. has used variations of this ideology to force other Indigenous nations and peoples, such as the Kanaka Maoli of Hawaii, under U.S. dominion. The UN Draft Declaration, including Article 3, is an effort by Indigenous nations and peoples to use contemporary human rights standards to forever eliminate the use of such immoral and repugnant doctrines as that of Christian discovery and dominion as the basis for relations between any state and Indigenous nations and peoples.

## CONCLUSION

One of the central tenets of the Universal Declaration of Human Rights is “the development of friendly relations between nations.” The Declaration also specifically distinguishes between nations and “Member States” of the UN. As we have shown above, the expression of human rights contained in the Universal Declaration of Human Rights, and in the International Human Rights Covenants, are intended to include within their scope “peoples of the territories under their [Member States’] jurisdiction.” When such claimed “jurisdiction” by Member States’ dominion rests upon claims of empire, and the Christian discovery of “heathens,” as in the case of the United States, Canada, Australia, and New Zealand, this is more in conformity with the Vatican’s papal bulls of the 15th Century than with contemporary human rights standards.

Those papal bulls, it must be remembered, gave Christendom’s highest “moral” sanction to the “subjugation of barbarous nations,” and “to invade, search out, capture, vanquish, and subdue all Saracens...pagans...and other enemies of Christ.” The Christian monarchs (the equivalent of modern day states) were to “reduce their [infidel] persons to perpetual slavery,” and “to take away all their possessions and property.” (The Bull Romanus Pontifex, January 8, 1455. See, Frances Gardiner Davenport, *European Treaties bearing on the History of the United States and its Dependencies to 1648*, 1917, p. 23) The Bull Inter Caetera issued by Pope Alexander VI on May 4, 1493, expressed the pope’s desire that “barbarous nations be subjugated,” and that the “Christian Empire” be expanded.

Unfortunately, many states that built their colonial systems on the legacy of the papal bulls, the English colonial charters, and other outmoded ideologies of the past, are now attempting to maintain the status quo along with its immoral foundation. And this despite the fact that those doctrines have been repudiated. For example, the International Court of Justice’s ruling in the Western Sahara case, the Mabo ruling in Australia, and the universal condemnation of Apartheid in South Africa. For incalcitrant states to cling to an outdated and immoral framework of colonialism just as we are about to usher in the 21st Century is insulting to Indigenous nations and peoples, and counter-productive. It sends the message that Indigenous nations and peoples will never be liberated from a system of colonial domination that dates back more than five centuries.

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